
8:30 a.m. Law and Motion

IN RE: BATES

CASE NUMBER: 26CV-0210349

Tentative Ruling on Petition for Name Change: Petitioner Stephanie Bates seeks to change her own last name, as well as her three minor children's last names, to Archer. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). No proof of service is on file for Aaron Hille, who is identified in the Petition as a parent of two of the minors. The Petition indicates the father of one of the minors is deceased.

This matter is continued to **Monday, October 26, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

Tentative Ruling on Motion to Quash Service of Summons: The Complaint in this personal injury action was filed on July 18, 2025. Defendant, Sunbabe, LTD, now specially appears to move for an order quashing Plaintiff's service of Summons. Plaintiff opposes the Motion. The Court notes Defendant's reply was untimely. The Court in its discretion will consider the late reply.

Requests for Judicial Notice.

Defendant request the Court take judicial notice of:

- (1) A copy of Defendant's Certificate of Incorporation and Articles of Incorporation issued by the Ontario Ministry of Public and Business Service Delivery.
- (2) A copy of the Certificate of Dissolution of Sunbabe, LTD issued by the Ontario Ministry of Public and Business Service Delivery.
- (3) A copy of Defendant's Articles of Dissolution.

Plaintiff requests the Court take judicial notice of:

- (1) Ontario Business Corporations Act, R.S.O. 1990, chapter B.16, Section 242- addresses proceedings against a dissolved corporation, service on a person last known as a director or officer and notice to Ontario governmental officials.
- (2) Ontario Rules of Civil Procedure, R.R.O. 1990, Regulation 194, rules 16.02, 16.03, 16.04, 16.08, and 16.09- addresses personal service on a corporation, alternatives at a residence or last registered office, sub-service, and proof.
- (3) Hague Conference on Private International Law, Canada Information under the Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, including Canada's recorded lack of opposition to Article 10(a), 10(b), and 10(c), the identification of process services as competent persons, and the Ontario Central Authority service estimate.

Defendant objects to Plaintiff's request as to the legal effect of Ontario Business Corporations Act, the Ontario Rules of Civil Procedure, Hague Service Convention materials, Canada's recorded lack of opposition to Article 10(a), (b), and (c), the identification of process servers as competent persons, and the Ontario Central Authority service estimate. The objections are overruled. All requests for judicial notice are granted pursuant to Evid. Code § 452 and 453.

Evidentiary Objections. Plaintiff's objections 1 and 2 are sustained; objection 3 is overruled. Defendant's objections 1 and 3 are sustained; objections 2 and 5 through 9 are overruled.

Merits. Defendant seeks an order quashing service of summons on the grounds that Sunbabe, LTD is a dissolved corporation, there is a lack of personal jurisdiction over Defendant, and service of the Summons and Complaint was insufficient.

Dissolution. Defendant argues that the court lacks personal jurisdiction because it is a dissolved corporation no longer in existence. Sunbabe, LTD dissolved on April 28, 2025, however this case wasn't filed until July 18, 2025. "It appears to be settled law that the effect of the dissolution of a corporation, or its expiration otherwise, depends upon the law of its domicile, and that a defunct foreign corporation has no greater capacity or higher standing to commence or maintain an action in the state of the forum than it would have in the state of its domicile." *Fidelity Metals Corp. v. Risley* (1946) 77 Cal.App.2d 377. Sunbabe, LTD was a corporation in Ontario, Canada, therefore the laws of Ontario, Canada control.

It is undisputed that if the law of Ontario, Canada control, that Ontario Business Corporations Act (OBCA) Section 242 applies. OBCA Section 242(1)(b) provides that "[d]espite the dissolution of a corporation under this Act...a civil, criminal, administrative, investigative, or other action or proceeding may be brought against the corporation as if it has not been dissolved." Considering an action may be filed against Defendant in Ontario, Canada, an action may also be filed against Defendant here.

Service of Process. Service of process must comply with Canadian and California law in a manner reasonably calculated to give actual notice, subject to the Hague Service Convention. CCP § 413.10. "Failure to comply with the Hague Service Convention procedures voids the service even though it was made in compliance with California law." *Kott v. Superior Court* (1996) 45 Cal.App.4th 1126. It is undisputed that Canada is a signatory to the Hague Service Convention.

"The primary innovation of the Convention is that it requires each state to establish a central authority to receive requests for service of documents from other countries. 20 U.S. T. 362, T. I. A. S. 6638, Art. 2. Once a central authority receives a request in the proper form, it must serve the documents by a method prescribed by the internal law of the receiving state or by a method designated by the requester and compatible with that law. Art. 5. The central authority must then provide a certificate of service that conforms to a specified model. Art. 6." *Volkswagenwerk Aktiengesellschaft v. Schlunk* (1988) 486 U.S. 694, 698. Defendant argues that service was ineffective because Plaintiff did not provide service through Canada's central authority. However, "[a] state also may consent to methods of service within its boundaries other than a request to its central authority. Arts. 8-11, 19." *Id.*

Plaintiff raises that Article 10 identifies alternatives where the destination state has not objected and alleges that Canada has not objected to Article 10(a), 10(b), or 10(c). Article 10 states:

“Provided the State of destination does not object, the present Convention shall not interfere with – a) the freedom to send judicial documents, by postal channels, directly to persons abroad, b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination, (c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.”

Water Splash, Inc. v. Menon (2017) 581 U.S. 271, 275.

Here, the proof of service of summons filed on April 21, 2026, indicates service was made by substituted service. Whether or not Canada has objected to Article 10 of the Hague Service Convention is irrelevant. Substituted service is not an authorized alternative method of service permitted by Article 10. The Court notes that under OBCA Section 242(2), “service of any process on a corporation after its dissolution shall be deemed to be sufficiently made if it is made upon any person last shown on the records of the Ministry as being a director or officer of the corporation before the dissolution.” Service was made upon a purported co-founder’s mother, who is undisputedly not a former director or officer of the corporation. Additionally, the process server was told on several occasions that the co-founder he sought to serve did not live at the service address and exhibit A of the declaration of Cordiano indicates several other addresses were located but no information was provided regarding whether any attempts were made to serve the required parties at these addresses.

The Court notes that lack of personal jurisdiction was also raised by Defendant and Plaintiff requested limited jurisdictional discovery. However, the Court is unable to rule on the merits regarding personal jurisdiction until the Summons and Complaint have been properly served.

The Motion to quash service of Summons is **GRANTED** on the grounds that service of the Summons and Complaint is invalid. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on August 7, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. Sanctions of \$250, and \$500 have previously been imposed and have not been paid. It appears that no lesser sanctions will prompt compliance. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

LANE VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206212

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on July 23, 2026, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement in violation of CRC 3.1380. All parties have submitted Declarations in response to the OSC which explain the failure to timely file MSC statements. The OSC is **DISHCHARGED**. No sanctions will be imposed. **Trial is set to**